

STATE OF COLORADO

STATE GRIEVANCE BOARD

Amos D. Martinez
Administrator

1560 Broadway, Suite 1340
Denver, CO 80202
(303) 894-7766

Department of Regulatory Agencies

Joseph A. Garcia
Executive Director

Division of Registrations
Bruce M. Douglas, Director



Roy Romer
Governor

December 22, 1995

Nancy Bowers, Ph.D., LPC

RE: Letter of Admonition
SGB #95.180(C)

Dear Dr. Bowers:

At its meeting on June 9, 1995, the 11-member Colorado State Grievance Board (Board) reviewed the available information concerning the complaint filed against you by _____ on behalf of _____

After thorough review, the Board found that your preparation and submission of a letter to Attorney Charles Labello, who was representing your client _____, in a custody dispute in Nevada with _____ warranted formal disciplinary action concerning your license to practice professional counseling and your psychotherapy practice in Colorado.

In the opinion of the Board, there are reasonable grounds to believe you failed to meet the generally-accepted standards of practice and violated section 12-43-704(1)(g), C.R.S. Specifically, the Board determined that:

1. You failed to adequately disclose that the letter was intended solely to assist Mr. Lobello in his representation of _____ and to assist in making a report of possible child abuse in the State of Nevada, and for no other purpose.
2. You failed to place limitations on Mr. Lobello's subsequent use of the letter.
3. Although you stated at the beginning of your letter that your comments were based entirely upon the information provided to you by your client, you failed to reiterate this throughout the letter.

The Board strongly encourages you to review your professional code of ethics and the mental health licensing statute.

By this letter, the Board takes the formal disciplinary action of admonishing you for the conduct specified above.

Nancy Bowers, Ph.D., LPC
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In accordance with section 12-43-705(3)(d), C.R.S., the Board advises you that you have the right to make a written request that the Board initiate formal disciplinary proceedings in order to adjudicate the conduct or acts upon which this letter is based. You must make your written request within twenty (20) days after receipt of this letter and address your request to Amos D. Martinez, Program Administrator, at the above letterhead address. If you make a timely request, the Board will deem this letter of admonition vacated and may proceed with disciplinary and/or injunctive proceedings in accordance with section 12-43-705(2), C.R.S., and applicable rules.

If this letter is not vacated, it will become the final agency action in this matter.

Sincerely,

FOR THE COLORADO STATE GRIEVANCE BOARD



Daniel Robinson
Board Chair

cc: Louis Larimer, Esquire

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